



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36606177

Date: JAN. 15, 2025

Appeal of San Diego, California Field Office Decision

Form N-600K, Application for Citizenship and Issuance of Certificate Under Section 322

The Applicant's U.S. citizen mother seeks a Certificate of Citizenship on behalf of the Applicant to reflect that she derived citizenship under section 322 of the Immigration and Nationality Act (the Act), 8 U.S.C. § 1433.

The Director of the San Diego, California Field Office denied the application, concluding that the Applicant had previously filed a Form N-600K in May 2012 that was denied in November 2012 and is not permitted to file a subsequent Form N-600K application. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Applicant bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

Section 322 of the Act applies to children of U.S. citizens born and residing outside of the United States. It provides in relevant part that:

- (a) A parent who is a citizen of the United States (or, if the citizen parent has died during the preceding 5 years, a citizen grandparent or legal guardian) may apply for naturalization on behalf of a child born outside of the United States who has not acquired citizenship automatically under section 320 [of the Act], [8 U.S.C. § 1432]¹. . . . [and] the [Secretary of Homeland Security] shall issue a certificate of citizenship to such applicant upon proof . . . that the following conditions have been fulfilled:

¹ Section 320 of the Act provides, in pertinent part, that a child born outside of the United States automatically becomes a citizen of the United States if: (1) at least one parent of the child is a citizen of the United States, whether by birth or naturalization; (2) the child is under the age of eighteen years; and (3) the child is residing in the United States in the legal and physical custody of the citizen parent pursuant to a lawful admission for permanent residence.

(1) At least one parent (or, at the time of his or her death, was) is a citizen of the United States, whether by birth or naturalization.

(2) The United States citizen parent –

(A) has . . . been physically present in the United States or its outlying possessions for a period or periods totaling not less than five years, at least two of which were after attaining the age of fourteen years; or

(B) has . . . a citizen parent who has been physically present in the United States or its outlying possessions for a period or periods totaling not less than five years, at least two of which were after attaining the age of fourteen years.

(3) The child is under the age of eighteen years.

(4) The child is residing outside of the United States in the legal and physical custody of the [citizen parent]. . . .

(5) The child is temporarily present in the United States pursuant to a lawful admission, and is maintaining such lawful status. . . .

Because the Applicant was born abroad, she is presumed to be a noncitizen. The standard of proof in derivative citizenship proceedings is preponderance of evidence. *Matter of Baires-Larios*, 24 I&N Dec. 467, 468 (BIA 2008). See *Matter of Baires-Larios*, 24 I&N Dec. 467, 468 (BIA 2008).

II. ANALYSIS

The Applicant was born in Sweden in 2007 to a naturalized U.S. citizen mother and a foreign national father. In May 2012, the Applicant's mother filed a Form N-600K application that was denied in October 2012 after the Applicant failed to appear for a scheduled interview. The record does not reflect that the Applicant filed an appeal or motion on the Director's 2012 denial.

In January 2023, the Applicant's mother filed a second Form N-600K, which is the subject of this appeal, indicating that her own U.S. citizen mother (the Applicant's maternal grandmother) met the U.S. physical presence requirements at section 322(a)(2)(B) of the Act. The Applicant's mother also represented on the Form N-600K that she and the Applicant are residing together in Sweden. The Director issued a request for additional evidence of, among other things, the U.S. citizen mother's birth certificate, termination of all prior marriages, and the maternal grandmother's U.S. physical presence, and the Applicant responded. However, the Director ultimately denied the 2023 Form N-600K based on the Applicant having previously filed the 2012 Form N-600K application.

On appeal, the Applicant's maternal grandmother states that she had surgery in Sweden in 2012 and therefore she and the Applicant were unable to attend the scheduled interview. She includes medical documents to support her assertion.

The regulation at 8 C.F.R. § 322.5(c) generally precludes adjudication of any subsequent Form N-600K application filed after a prior Form N-600K application has been denied and the appeal period has expired. Instead, an applicant may file a motion to reopen the Director's decision, which must meet the motion requirements at 8 C.F.R. § 103.5(a)(2). However, rather than filing an appeal or motion on the 2012 denial of her previous Form N-600K, the Applicant here filed this second Form N-600K in 2023. The Director's denial of the second Form N-600K is consistent with the requirements of 8 C.F.R. § 322.5(c), and we therefore likewise dismiss this appeal on that basis.

We note that the Director's denial correctly advised the Applicant that she may still file a motion to reopen her 2012 Form N-600K with the Director, and this option remains available to her. However, we also note that the Applicant's 18th birthday is in 2025, and a Certificate of Citizenship under section 322 of the Act must be issued while an applicant remains under 18 years of age, in accordance with section 322(a)(3) of the Act.

As an additional matter, we note that the Applicant's mother signed and filed the Form N-600K on behalf of the Applicant in January 2023; however, the Applicant's grandmother signed the related Form I-290B appeal that is before us. The regulation at 8 C.F.R. § 322.3 provides that a U.S. citizen parent of a child (including an adopted child) may file an N-600K under section 322 of the Act on behalf of the child (who remains under the age of 18 years). The regulation at 8 C.F.R. § 322.2 further provides that, if the U.S. citizen parent has died, the child's U.S. citizen grandparent or U.S. citizen legal guardian may submit the Form N-600K application, provided that it is not filed more than five years after the death of the U.S. citizen parent. However, there is no evidence in the record that the Applicant's U.S. citizen mother died subsequent to filing the underlying Form N-600K in 2023 such that the Applicant's U.S. citizen grandmother may file the Form I-290B appeal form on the Applicant's behalf. We do not further address the grandmother's standing to file this appeal as we dismiss the appeal on a separate, dispositive basis. However, in any further proceeding, the Applicant must establish that the individual signing a form on her behalf has standing in accordance with these regulatory provisions.

III. CONCLUSION

The Applicant is not eligible for approval of the 2023 Form N-600K that is on appeal before us because she has a previously denied Form N-600K for which the appeal period has expired. 8 C.F.R. § 322.5(c).

ORDER: The appeal is dismissed.